

Ram Devi v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 6 February 2023 · Writ - C No. 912 of 2023 · **Connection already released; residual grievance left to Executive Engineer.**

HEADNOTE

Writ for a new electricity connection disposed of after the licensee had already released it. Any remaining grievance, including the claim that earlier bills were incorrectly generated, is to be taken to the Executive Engineer under the Electricity Supply Code; the Court does not decide that billing dispute.

FACTUAL SUMMARY

Ram Devi sought a mandamus directing release of a new electricity connection at the petitioner's house within a time fixed by the Court. Counsel for respondent nos. 2 and 3, on instructions, stated that the connection had already been given. Counsel for the petitioner accepted that it was released only the day before, and said that bills earlier raised in the petitioner's name were therefore false and incorrectly generated. The connection had thus been released before the hearing, and the dispute that remained concerned those prior bills.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.2

Residual grievance after a new connection is released

HOLDING

Where the new connection sought by mandamus has already been released, the writ is disposed of, and any grievance that remains, including a claim that earlier bills were incorrectly generated, is to be taken to the Executive Engineer under the relevant provision of the Electricity Supply Code. The Court does not itself examine those bills. ¶ 1

PRINCIPLE TAGS

UP-2005::6.2 After the new connection had already been released, the remaining complaint that earlier bills were wrongly raised was left to the Executive Engineer under the Supply Code, and the writ was disposed without a decision on those bills. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER BILLS GENERATED IN THE PETITIONER'S NAME BEFORE THE NEW CONNECTION WAS RELEASED WERE FALSE OR INCORRECTLY RAISED

Left to the Executive Engineer if the petitioner pursues the remaining grievance under the Supply Code. ¶ 1